



File No.: EXP202203572

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On March 2, 2022, a complaint was filed with the Spanish Agency for Data Protection against XFERA MÓVILES, S.A., with NIF A82528548. The reasons for the complaint are as follows:

The complainant claims to have received commercial calls offering services from YOIGO, on mobile line ***PHONE.1, registered in the Robinson List since December 15, 2021, providing supporting documentation in this regard. Additionally, they provide recordings of the received calls, as well as screenshots showing the chronology of receipt (February 15, 24, and 28) and calling numbers (***PHONE.2, ***PHONE.3, and ***PHONE.4). They also provide a copy of the telephone contract to prove ownership of the receiving line.

The complainant states that they have received commercial calls offering services from MÁSMÓVIL. They provide supporting documentation of the registration of the receiving line in the Robinson List and a contract to prove ownership of that line. Additionally, they provide recordings of the calls and screenshots, showing the chronology of receipt (February 17 and 25) and calling numbers (***PHONE.2 and ***PHONE.5).

Furthermore, they complain about receiving a commercial SMS from MÁSMÓVIL on March 3, 2022, stating that they have never been a customer of the promoted entity. They indicate the receiving line and the name of the company that provided the telephone service for that line at the time of receiving the SMS, and they provide a contract proving ownership of the receiving line and screenshots of the received message, showing the date and time of receipt and the name of the sender.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party, Xfera, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 28, 2022, as evidenced by the acknowledgment of receipt in the file.

On April 30, 2022, a response was received by this Agency indicating the following:

That they are affiliated with the entity Adigital, which manages the advertising exclusion list, known as the Robinson List. All their campaigns are filtered with this list. Additionally, they require all companies that collaborate with them in telemarketing to perform this filtering when using their own databases that are not part of the databases of the complained party. These databases are also filtered when conducting commercial campaigns with the internal advertising exclusion list of the complained party. They have verified in their system that the complainant's number has not been impacted by commercial telephone calls, but it has been impacted by commercial SMS (attached list) that contained automatic links to unsubscribe. They have requested additional information from their database provider, the entity AD735, which has guaranteed that they have obtained the consent of the interested parties, providing a certificate from AD375 in this regard indicating that consent was obtained through a participation form in a travel raffle on the website: www.premium-sales.es on February 21, 2018, at 5:48 PM. Since they have the consent of the owner, the complained party is not obliged to consult the advertising exclusion lists, as established in Article 23.4 of the LOPDGG. In any case, AD735 informs that, as a result of this complaint, they have removed the complainant's phone number from their databases.

On the other hand, the complained party indicates that their collaborators must provide them monthly with an updated list of the outgoing numbers they are going to use, and the use of uncommunicated numbers is not permitted. They have verified that the calling lines indicated in the complaint are not associated with any of their collaborators. They have investigated online, and these numbers appear to be linked to spam and fraudulent practices.

THIRD: On June 8, 2022, in accordance with Article 65 of the LOPDGDD, the complaints were

archived based on the following:

"Once the reasons presented by the complained party, which are in the file, have been analyzed, it has been established that there are no rational indications of the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, and consequently, the opening of a sanctioning procedure is not warranted.

It should be noted that Administrative Sanction Law, due to its specialty, applies, with some nuances but without exceptions, the guiding principles of criminal law, resulting in the clear full validity of the principle of the presumption of innocence.

In this regard, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that...

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The burden of proof lies with the accuser, with no one being obliged to prove their own innocence; and any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal ruling." This principle is expressly enshrined for sanctioning administrative procedures in Article 53.2.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which recognizes the interested party's right "To the presumption of no existence of administrative responsibility until proven otherwise."

In short, the application of the principle of presumption of innocence prevents attributing an administrative infringement when no evidence or indications have been obtained that derive the existence of an infringement.

In this case, from the actions taken and the documentation available in the procedure, there is no inference of an infringing action by the complained party within the jurisdiction of the Spanish Agency for Data Protection, therefore the complaint should be archived."

FOURTH: On June 17, 2022, the complainant filed a motion for reconsideration against the archiving of their complaints, in which they express their disagreement with the contested resolution, arguing that they deny having registered on any promotional website after their phone number was included in the Advertising Exclusion List on December 15, 2021.

The appeal was upheld on October 24, 2022, as the complained party provided, along with their response to the information request, a certificate from agency AD735, regarding the collection of personal data and proof of the complainant's consent to receive promotional communications, with the date of the collection of personal data and therefore the registration of the complainant recorded in said certificate being February 21, 2018. In this regard, it is necessary to point out that the complained party has not proven that it was the complainant who incorporated their personal data onto the website nor that free, specific, informed, and unequivocal consent was granted through a declaration or a clear affirmative statement, as required by the GDPR in its Article 4.11, since the certificate provided by the complained party does not even include the informative clause used to obtain the alleged consent.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel), the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI), and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection

must process in the exercise of the competencies attributed to it by other laws."

II

Prohibition of commercial communications made via email or equivalent electronic communication means

Article 21 of the LSSI establishes the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the customer.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, being prohibited the sending of communications that do not include such address."

III

Summary of the facts

The complainant appeals as they indicate that they have not given consent to any entity for the sending of advertising since they registered on the Robinson list.

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Received a promotional SMS on March 3, 2022, having obtained your data from a service provider that acquired it when the claimant participated in a contest.

The sending of SMS messages without adhering to the provisions established in Article 21 of the LSSI constitutes an infringement classified as "minor" in Article 38.4.d) of said regulation, which defines it as, "The sending of commercial communications by email or other equivalent electronic communication means when such communications do not meet the requirements established in Article 21 and do not constitute a serious infringement."

However, Article 45 of the aforementioned LSSI establishes that the statute of limitations for minor infringements occurs six months after they have been committed, therefore, in this case, the infringement would have expired on September 3, 2022.

In accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to XFERA MÓVILES, S.A., and to the claimant.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions established in Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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